

25NNCV06136 25NNCV06136

County: los-angeles

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Case Number: 25NNCV06136 Hearing Date: August 7, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTIONS TO COMPEL REQUEST FOR PRODUCTION, SET ONE, DEEMING REQUESTS FOR ADMISSIONS ADMITTED and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

On September 2, 2025, Plaintiff City of Pasadena ("Plaintiff" or "City") filed this action against Defendants Titan Disposal Corporation, Inc. and Bill Curren (collectively, "Defendants") arising from a September 27, 2023, motor vehicle collision in which Defendant Bill Curren allegedly backed a skiploader into a City vehicle operated by Plaintiff's employee, William Crum. Plaintiff asserts causes of action for motor vehicle negligence and breach of contract, seeking to recover workers' compensation benefits paid on behalf of its employee pursuant to Labor Code section 3852 and damages allegedly recoverable under the parties' indemnity agreement.

On June 30, 2026, Plaintiff City of Pasadena filed four discovery motions: two motions to compel Defendants Titan Disposal Corporation, Inc. and Bill Curren to serve verified responses, without objections, to Requests for Production, Set One, and two motions to deem Requests for Admissions, Set One, admitted. No oppositions have been filed. Because the motions involve substantially identical facts, legal issues, and requested relief, the Court exercises its discretion to consolidate the motions for purposes of this ruling.

II. LEGAL STANDARD

"Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared . . ." (Code Civ. Proc., § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

A propounding party may move to compel responses to requests for production of documents where the responding party fails to provide responses. (CCP § 2031.300.) The responding party must provide responses within thirty days after the demand is served. (CCP § 2031.030(c)(2) & (3).) The responding party waives all objections, including privilege and work product, by failing to timely respond to requests for production of documents. (CCP § 2031.300.).

III. ANALYSIS

Request for Admission - Set One

Plaintiff moves to deem Requests for Admissions, Set One, admitted as to Defendants Titan Disposal Corporation, Inc. and Bill Curren on the ground that neither Defendant served timely responses.

The record reflects that Plaintiff served Requests for Admissions, Set One, on November 25, 2025. (Smith Decl., ¶ 2.) After Defendants failed to timely respond, Plaintiff sent a demand letter on January 9, 2026. Defense counsel represented that verified responses, without objections, would be served by January 23, 2026. (Smith Decl., ¶ 3.) When no responses were received, Plaintiff again contacted defense counsel on February 2, 2026, advising that motions would be filed if verified responses were not served by February 12, 2026. (Smith Decl., ¶ 4.) Despite these efforts, Defendants did not serve responses or request any additional extension of time before Plaintiff filed the instant motions. (Smith Decl., ¶ 5.) Defendants have not opposed the motions.

Pursuant to Code of Civil Procedure section 2033.280, subdivision (c), the Court must deem the matters admitted unless, before the hearing, the responding party serves responses in substantial compliance with the Code. As no opposition has been filed and there is no indication that Defendants have served code-compliant responses before the hearing, the Court GRANTS Plaintiff's motions and deems admitted all matters contained in Requests for Admissions, Set One, as to Defendants Titan Disposal Corporation, Inc. and Bill Curren.

Request for Production - Set One (RFP)

Plaintiff moves to compel Defendants Titan Disposal Corporation, Inc. and Bill Curren to serve verified responses, without objections, to Request for Production, Set One.

Here, Plaintiff served RFP, Set One, on Defendants Titan Disposal Corporation, Inc. and Bill Curren on November 25, 2025. (Smith Decl., ¶ 2.) After neither Defendant timely responded, Plaintiff sent a demand letter on January 9, 2026. Defense counsel represented that verified responses, without objections, would be served by January 23, 2026. (Smith Decl., ¶ 3.) When no responses were received, Plaintiff again contacted defense counsel on February 2, 2026, advising that motions to compel would be filed if verified responses were not served by February 12, 2026. (Smith Decl., ¶ 4.) As of the filing of these motions, Defendants had not served any responses or requested any further extension of time. (Smith Decl., ¶ 5.) Defendants have not opposed the instant motions.

Based on the foregoing, the Court GRANTS the motions to compel responses to RFPs. Defendants Titan Disposal Corporation, Inc. and Bill Curren shall each serve verified responses, without objections, to Plaintiff's Request for Production, Set One, within 30 days of notice of the Court's order.

IV. SANCTIONS

Monetary sanctions are mandatory against the party, the attorney, or both whose failure to serve timely responses necessitated the motions, unless the Court finds the party acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2031.300, subd. (c), 2033.280, subd. (c); Cal. Rules of Court, rule 3.1348(a).) Additionally, Code of Civil Procedure section 2023.030 authorizes the Court to impose monetary sanctions

for misuse of the discovery process, including failing to respond to an authorized method of discovery. (Code Civ. Proc., §§ 2023.010, subd. (d), 2023.030.)

Plaintiff seeks monetary sanctions of \$1,250 for each of the four motions, for a total of \$5,000, against Defendants Titan Disposal Corporation, Inc. and Bill Curren. (Smith Decl., ¶ 6.) The motions are unopposed and involve nearly identical factual and legal issues. Therefore, the Court finds the requested amount excessive and reduces the reasonable time to 5 hours at counsel's hourly rate of \$200, for a total award of \$1000 for all four motions.

Thus, the Court GRANTS \$1000 in monetary sanctions against Defendant Titan Disposal Corporation, Inc, and Bill Curren, jointly and severally. Monetary sanctions shall be payable within 30 days of notice of the Court's order.

V. CONCLUSION AND ORDER

The Court GRANTS Plaintiff's motions to compel RFPs- Set One, and motions to deem RFA's admitted. Defendants are ordered to respond to RFPs within 30 days of this order.

The Court further GRANTS monetary sanctions in the amount of \$1000.00 against Defendant Titan Disposal Corporation, Inc, and Bill Curren, jointly and severally. Monetary sanctions shall be payable within 30 days' notice of this order.

Defendants are to give notice.

Dated: August 7, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT